PATENT LICENSE AGREEMENT AGR-0028

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This Patent License Agreement ("Agreement") is entered into on August 16, 2018 by the National Aeronautics and Space Administration ("NASA"), an agency of the United States, and Tidewater Tire Technologies, Inc. ("Licensee"), having its principal place of business at 5 Commerce Lane, Hampton, VA 23666.

Article 1. Grant. Subject to the terms of this Agreement, NASA grants Licensee a partially exclusive license under the Licensed Patents to make, use, and sell Licensed Products within the Field of Use and the Licensed Territory. The Licensed Patents are U.S. Patent No. 7,075,295 (NASA Case No. LAR-16571-1); U.S. Patent No. 7,589,525 (NASA Case No. LAR-16571-2); U.S. Patent No. 7,759,932 (NASA Case No. LAR-16571-3).

Article 2. Field of Use. The Field of Use is limited to emissions detection and quantification, gas and liquid flow rate measurement, compositional analysis, and quantification for hydrocarbons and other substances, including but not limited to H2S, CO2 and SO2, associated with the oil, gas and waste management industries at the well bore and/or below grade cavern, and associated above ground facilities for each; and/or similar fields of use thereto. DATES: The prospective partially exclusive license may be granted unless NASA receives written objections, including evidence and argument no later than June 22, 2018 that establish that the grant of the license would not be consistent with the requirements regarding the licensing of federally owned inventions as set forth in the Bayh-Dole Act and implementing regulations.

Article 3. Licensed Territory. The Licensed Territory is United States (ISO 3166 code US).

Article 4. Term. This Agreement takes effect on August 21, 2018 and remains in force until August 18, 2028, unless terminated earlier under its terms.

Article 5. Royalties. Licensee shall pay NASA a running royalty of 1.8 percent of Net Sales and a minimum annual royalty of 15,000 U.S. dollars. This Article is confidential.

Article 6. Sublicensing. Licensee may not grant sublicenses under this Agreement.

Article 7. Export Control. Licensee shall comply with all United States export control laws and regulations that apply to the Licensed Products and related technical data.

Article 8. Signatures. Signed for NASA by the Licensing Officer, NASA Langley Research Center, and for Licensee by its authorized officer.